

Issue

Can PSO's take a witness statement from a witness; and consequently sign the jurat and acknowledgement with that witness?

For this, let's assume we have a witness Sally for an assault at Flinders Street Railway Station. PSO's at the Flinders Street Booth have had Sally come up and say she was a witness to an assault.

PSO BLOGGS wants to take Sally's statement, he thinks it will be good practice before he crosses over to Police next month.

Rule

CRIMINAL PROCEDURE ACT 2009 - SECT 41

Contents of full brief

- (1) Unless earlier disclosed to the accused, whether in a preliminary brief, at a summary case conference or otherwise, a full brief must contain—
- (a) a notice in the form prescribed by the rules of court—
 - (i) explaining this section and section 83; and
 - (ii) explaining the importance of the accused obtaining legal representation; and
 - (iii) advising that the accused has the right, if eligible, to legal aid under the Legal Aid Act 1978 ; and
 - (iv) providing details of how to contact Victoria Legal Aid; and
 - (b) a copy of the charge-sheet relating to the alleged offence; and
 - (c) a copy of the criminal record of the accused or a statement that the accused has no previous convictions or infringement convictions; and
 - (d) any information, document or thing on which the prosecution intends to rely at the hearing of the charge including—
 - (i) a copy of any statement relevant to the charge signed by the accused, or a record of interview of the accused, that is in the possession of the informant; and
 - (ii) a copy, or a transcript, of any audio-recording or audiovisual recording required to be made under Subdivision (30A) of Division 1 of Part III of the Crimes Act 1958 ; and
 - (iii) a copy or statement of any other evidentiary material that is in the possession of the informant relating to a confession or admission made by the accused relevant to the charge; and
 - (iv) a list of the persons the prosecution intends to call as witnesses at the hearing, together with a copy of each of the statements made by those persons; and

Note

See section 47 for requirements for statements.

- (v) a legible copy of any document which the prosecution intends to produce as evidence; and
- (vi) a list of any things the prosecution intends to tender as exhibits; and
- (vii) a clear photograph, or a clear copy of such a photograph, of any proposed exhibit that cannot be described in detail in the list; and
- (viii) a description of any forensic procedure, examination or test that has not yet been completed and on which the prosecution intends to rely as tending to establish the guilt of the accused; and
- (ix) any evidentiary certificate issued under any Act that is likely to be relevant to the alleged offence; and
- (e) any other information, document or thing in the possession of the prosecution that is relevant to the alleged offence including—

- (i) a list of the persons (including experts) who have made statements or given information relevant to the alleged offence but who the prosecution does not intend to call as witnesses at the hearing; and
- (ii) a copy of every statement referred to in subparagraph (i) made by each of those persons or, if the person has not made a statement, a written summary of the substance of any evidence likely to be given by that person or a list of those statements or written summaries; and
- (iii) a copy of every document relevant to the alleged offence that the prosecution does not intend to tender as an exhibit at the hearing or a list of those documents; and
- (iv) a list containing descriptions of any things relevant to the alleged offence that the prosecution does not intend to tender as exhibits at the hearing; and
- (v) a clear photograph, or a clear copy of such a photograph, of any thing relevant to the alleged offence that cannot be described in detail in the list; and
- (vi) a copy of—
 - (A) records of any medical examination of the accused; and
 - (B) reports of any forensic procedure or forensic examination conducted on the accused; and
 - (C) the results of any tests—
 carried out on behalf of the prosecution and relevant to the alleged offence but on which the prosecution does not intend to rely; and
- (vii) a copy of any other information, document or thing required by the rules of court to be included in a full brief; and
- (viii) subject to section 32C of the Evidence (Miscellaneous Provisions) Act 1958, a copy of any information, document or thing that is relevant to the credibility of a witness for the prosecution; and

Example

The witness' criminal history (including pending charges), or the giving of a letter of assistance to the witness, the reduction of criminal charges against the witness, other favourable treatment in a criminal proceeding, or any payment or reward provided, as a result of the witness' cooperation with police.

(f) if the informant refuses to disclose any information, document or thing that is required to be included in the full brief, a written notice that the informant refuses disclosure under section 45, identifying the ground for refusing disclosure.

(2) Section 48 applies to information and other material supplied in a full brief.

CRIMINAL PROCEDURE ACT 2009 - SECT 47

Rules with respect to statements

(1) Subject to subsection (3), a statement referred to in section 41 which the informant intends to tender at the hearing of the charge if the accused does not appear must be—

(a) in the form of an affidavit; or

(b) signed by the person making the statement and contain an acknowledgment signed in the presence of a person referred to in Schedule 3 that the statement is true and correct and is made in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury; or

(c) in a form, and attested to in a manner, prescribed by the rules of court.

(2) If a person under the age of 18 years makes a statement which the informant intends to tender as mentioned in subsection (1), the statement must include the person's age.

(3) If a person who cannot read makes a statement which the informant intends to tender as mentioned in subsection (1)—

(a) the statement must be read to the person before he or she signs it; and

(b) the acknowledgment must state that the statement was read to the person before he or she signed it.

Schedule 3—Persons who may witness statements in preliminary brief, full brief or hand-up brief

1 A police officer or a member of a police force or police service of any other State or of the Northern Territory.

CRIMINAL PROCEDURE ACT 2009 - DEFINITIONS

"*police officer*" has the same meaning as in the Victoria Police Act 2013 ;

"*protective services officer*" has the same meaning as in the Victoria Police Act 2013 ;

VICTORIA POLICE ACT 2013 - DEFINITIONS

member of Victoria Police personnel means—

(a) a person referred to in section 7; or

(b) a special constable, but only in respect of the performance of duties and functions and exercise of powers by the special constable for Victoria Police;

"*protective services officer*" means a person appointed under Division 7 of Part 3;

Application

s. 47: A witness statement is just an indication of testimonial evidence that a witness would give when called to give that testimony. Pursuant to s. 47(1)(b), an acceptable format of this is someone in Schedule 3 signing the Jurat / Acknowledgement.

Schedule 3: Clause 1 makes reference to "a member of a police force."

CPA Definitions: Protective services officers have the same meaning as the Victoria Police Act 2013.

VPA Definitions: Protective services officer points to Division 7. A member of Victoria Police also points to the same thing.

Conclusion

PSO's can sign a jurat and acknowledgement in a witness statement in compliance with the Criminal Procedure Act 2009.

I have reviewed the Witness Statement VPM, there is nothing within it that prevents PSO's from taking witness statements or signing witness statements.